

Chief Justice's Court

Stay Vacation Application No. 35689 of 2009.

IN

Case :- WRIT - C No. - 19592 of 2008

Petitioner :- M/S Sri Dauji Cold Storage Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- H.P. Dube

Hon'ble Amitava Lala, Acting Chief Justice

Hon'ble S.N.H. Zaidi, J.

Let the application be kept with the record.

Order Date :- 8.2.2010

SKT/-

Court No. - 9

Case :- WRIT - C No. - 19592 of 2008

Petitioner :- M/S Sri Dauji Cold Storage Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- H.P. Dube

Hon'ble D.S.R. Varma,J.

Hon'ble Abhinava Upadhya,J.

At the request, the case is passed over.

List again showing the name of Sri Mayank Agarwal as counsel for the petitioners.

Order Date :- 22.11.2010

SKM

Court No. - 9

Case :- WRIT - C No. - 19592 of 2008

Petitioner :- M/S Sri Dauji Cold Storage Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- H.P. Dube

Hon'ble D.S.R. Varma,J.

Hon'ble Abhinava Upadhya,J.

Passed over on the request of the learned counsel for the respondent.

When the case is next listed, the name of Sri Rajendra Kumar Mishra shall be shown as counsel for the respondents.

Order Date :- 14.12.2010

SA

Court No. - 9

Case :- WRIT - C No. - 19592 of 2008

Petitioner :- M/S Sri Dauji Cold Storage Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- H.P. Dube

Hon'ble D.S.R. Varma,J.

Hon'ble Abhinava Upadhya,J.

Passed over on the illness slip of Shri Mayank Agrawal,
learned counsel for the petitioners.

Order Date :- 22.12.2010

SKM

Court No. - 9

Case :- WRIT - C No. - 19592 of 2008

Petitioner :- M/S Sri Dauji Cold Storage Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- H.P. Dube

Hon'ble Rakesh Tiwari,J.

Hon'ble Vijay Prakash Pathak,J.

Case is taken up in the revised list. None appears on behalf of the parties to argue the matter.

The writ petition is therefore dismissed for non prosecution. Interim order, if any, stands discharged.

Order Date :- 22.9.2011

SNT/

Court No. - 36

Case :- WRIT - C No. - 19592 of 2008

Petitioner :- M/S Sri Dauji Cold Storage Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- H.P. Dube

Hon'ble Rakesh Tiwari,J.

Hon'ble Dinesh Gupta,J.

Passed over on the illness slip of Sri R.K. Mishra for the respondent. List after two weeks.

Order Date :- 12.1.2012

SNT/

Court No. - 36

Case :- WRIT - C No. - 19592 of 2008

Petitioner :- M/S Sri Dauji Cold Storage Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- H.P. Dube

Hon'ble Rakesh Tiwari,J.

Hon'ble Dinesh Gupta,J.

Cause shown in the restoration application no. 318248 of 2011 is sufficient. Restoration application is allowed. Order dated 22.09.2011 is recalled. The petition is restored to its original number.

Office is directed to list this case after two weeks.

Order Date :- 31.1.2012

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Court No. - 9

Case :- WRIT - C No. - 19592 of 2008

Petitioner :- M/S Sri Dauji Cold Storage Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Petitioner Counsel :- Dinesh Rai, Mayank Agarwal, Seema Agrawal

Respondent Counsel :- H.P. Dube, R.K. Mishra, S.C.

Hon'ble R.K. Agrawal, J.

Hon'ble Ram Surat Ram (Maurya), J.

Passed over on the request of Sri Mayank Agarwal as it has been stated that he is in some personal difficulty.

Order Date :- 18.7.2012

AM/-

Court No. - 9

Case :- WRIT - C No. - 19592 of 2008

Petitioner :- M/S Sri Dauji Cold Storage Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Petitioner Counsel :- Dinesh Rai, Mayank Agarwal, Seema Agrawal

Respondent Counsel :- H.P. Dube, R.K. Mishra, S.C.

Hon'ble R.K. Agrawal, J.

Hon'ble Ram Surat Ram (Maurya), J.

Passed over on the request of Sri Mayank Agrawal in order to enable him to file rejoinder affidavit.

Order Date :- 25.7.2012

AM/-

Court No. - 9

Case :- WRIT - C No. - 19592 of 2008

Petitioner :- M/S Sri Dauji Cold Storage Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Petitioner Counsel :- Dinesh Rai, Mayank Agarwal, Seema Agrawal

Respondent Counsel :- H.P. Dube, R.K. Mishra, S.C.

Hon'ble R.K. Agrawal, J.

Hon'ble Ram Surat Ram (Maurya), J.

As prayed, three weeks and no more time is granted to file rejoinder affidavit.

List thereafter.

Order Date :- 8.8.2012

Rkb

Court No. - 3

Case :- WRIT - C No. - 19592 of 2008

Petitioner :- M/S Sri Dauji Cold Storage Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Counsel for Petitioner :- Dinesh Rai

Counsel for Respondent :- R.K.Mishra,S.C.

Hon'ble Pritinker Diwaker,J.

Hon'ble Saral Srivastava,J.

Learned counsel for the petitioners submits that this case is squarely covered at least by three decisions of this Court.

Sri R.K. Mishra, counsel for the Electricity Board prays for and is granted a week's time to go through these judgments and to make statement.

List this case on 29th November, 2018.

Order Date :- 14.11.2018

Ishan/S. Sharma

Court No. - 39

Case :- WRIT - C No. - 19592 of 2008

Petitioner :- M/S Sri Dauji Cold Storage Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Counsel for Petitioner :- Dinesh Rai, Mayank Agarwal, Seema Agrawal

Counsel for Respondent :- H.P. Dube, R.K. Mishra, S.C.

Hon'ble B. Amit Sthalekar, J.

Hon'ble Piyush Agrawal, J.

This writ petition is of the year 2008.

In spite of the Court's order dated 14.11.2018, no one is present to assist this Court.

List this case peremptorily in the next cause list.

Order Date :- 29.11.2018

Rahul.

Court No. - 39

Case :- WRIT - C No. - 19592 of 2008

Petitioner :- M/S Sri Dauji Cold Storage Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Counsel for Petitioner :- Dinesh Rai, Mayank Agarwal, Seema Agrawal

Counsel for Respondent :- H.P. Dube, R.K. Mishra, S.C.

Hon'ble B. Amit Sthalekar, J.

Hon'ble Piyush Agrawal, J.

Shri Mayank Agarwal, learned counsel for the petitioner is present.

Shri R.K. Mishra, learned counsel for the respondent states that somebody has marked his illness in the cause list. However, both the counsel request that the matter may be passed over for today.

As prayed, the matter is passed over for today.

Order Date :- 6.12.2018

o.k.

Court No. - 39

Case :- WRIT - C No. - 19592 of 2008

Petitioner :- M/S Sri Dauji Cold Storage Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Counsel for Petitioner :- Dinesh Rai, Mayank Agarwal, Seema Agrawal

Counsel for Respondent :- H.P. Dube, R.K. Mishra, S.C.

Hon'ble B. Amit Sthalekar, J.

Hon'ble Piyush Agrawal, J.

Heard Sri Saroj Giri holding brief of Sri Mayank Agarwal, learned counsel for the petitioners and Sri R.K. Mishra, learned counsel for the respondents.

The petitioners in the writ petition is seeking quashing of the order dated 29.3.2008 issued by the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Mathura whereby he has directed the petitioners to pay the arrears of electricity dues at three times of the electricity rate amounting to Rs.7,33,245/-.

The petitioner no. 2 is running a cold storage by the name 'M/S Sri Dauji Cold Storage Pvt Ltd', petitioner no. 1 herein, and has obtained a sanctioned load of 150 KVA from the erstwhile U.P. State Electricity Board. On 01.11.2004 there was a surprise checking done in the premises of the petitioners wherein it was found that the window seal of the meter was tampered. A provisional assessment order was issued to the petitioners on 28.09.2005. Aggrieved, the petitioner no. 2 approached the Civil Court by filing suit no. 1115 of 2005 and an interim injunction was also granted in his favour on 24.12.2005. In the meantime, he also filed his detailed objection to the provisional assessment order but he submits that he was informed by the department that if he withdrew the civil suit the provisional assessment proceedings would be dispensed with. Aggrieved, he filed an application on 04.04.2006 for withdrawing his civil suit which was accordingly dismissed as withdrawn. Thereafter, the petitioner no. 2 was served with a final assessment order date 22.4.2006 for an amount of Rs.7,43,217 which, according to him, has also been deposited with the department. It is stated that after about two years the impugned order has been issued informing him that the provisional assessment has been made at 1.5 times instead of 3 times and that now he was required to deposit final assessment charges at three times of the electricity rate.

Contention of the learned counsel for the petitioners is that the petitioners have already undergone proceedings once and accepted the final assessment order made by the department on 22.4.2006 and in terms thereof, they have deposited a sum of Rs.7,43,217/- and therefore, they cannot be made to suffer twice for the same cause. His second submission is that in any case the rate of three times is not admissible inasmuch as on the date of surprise checking on 1.11.2004 charging of the electricity dues under Section 126(6) of the Electricity Act, 2003

was 1.5 times which was subsequently amended vide amendment dated 15.6.2007 and enhanced to twice the normal charges. He, therefore, submits that in this view of the matter the impugned order dated 29.3.2008 is absolutely illegal and arbitrary. Reliance has been placed on a judgement of a learned single Judge of this Court dated 23.9.2005 passed in **Civil Misc. Writ Petition No. 58317 of 2005 (Pankaj Kumar vs. Kanpur Electric Supply Company and others)** wherein interpreting the provisions of Section 126(6) of the Electricity Act, 2003, learned single Judge has held that assessment ought to have been made on one and half times the tariff and not three times as per the U.P. Electricity Supply Code, 2002. Further reliance has been placed on a Division Bench judgement of this Court in **Writ - C No. 60987 of 2005 (Vijay Pal Singh & Another vs. Dakshinanchal Vidyut Vitran Nigam Ltd & others)** dated 29.3.2010 wherein the Division Bench referring to the provisions of the U.P. Electricity Supply Code, 2005 has held that the tariff prescribed is 1.5 times and not 3 times. Relevant extract of the judgement of the Division Bench reads as under :

"From the perusal of the aforesaid provisions of the Act and the Code it is apparent that in the Act under Section 126(6) provided that assessment can only be done at the rate of 1.5 times of the tariff applicable, whereas the Code provided that in case of theft assessment at the rate of three times of the tariff applicable shall be made. Section 174 of the Act provided that Act shall have an overriding effect and the code which has been framed under the provisions of the Act being subordinate legislation can not travel beyond the scope of the provisions of the Act and is ultra-vires to the provisions of the Act. However, realizing their mistake the U.P. Electricity Regulatory Commission which has framed the U.P. Electricity Supply Code, 2005 made 3rd amendment to the Code on 14.9.2006 and clause 8.1(iv) was amended and clause 8.1(b)(iv) was inserted and it was provided that an assessment in cases of theft will be done at the rate of 1.5 times the tariff rate, thus, the provisions of the Code was made in consonance with the provisions of the Act and the illegality in framing the Code stood cured. It is also relevant to point out over here that the Electricity Act, 2003 was amended on 15.6.2007 by which Section 126(6) was amended and it was provided that the assessment will be done at the rate of 2 times of the tariff rate instead of 1.5 times the tariff rate as was being charged earlier. However, U.P. Electricity Regulatory Commission has not yet amended the clause 8.1(b)(iv) of the Code to bring it in consonance with the provisions of the amended Act and the Code still provides for assessment at the rate of 1.5 times the tariff rate. It is not necessary for us to go into the question as to what will be effect of not amendment to the Code in consonance with the provisions of the Act. Since the petitioner's case is covered by the pre-amended Act and he was liable to pay 1.5 times of the tariff applicable as checking in the case of the petitioner was carried on 4.5.2005 and at that date unamended clause 8.2(iv) of the Code was in existence, which provided for assessment at the rate of three times of the tariff rate. Since three times of the tariff rate provided by the code at that time was contrary to the provisions of Section 126(6) of the Act, therefore, interest of justice would be served if we direct the petitioner to pay 1.5 times of the tariff applicable instead of three times tariff applicable.

In the result writ petition succeeds and is allowed. The impugned order dated 5.7.2005 Annexure-4 to the writ petition is quashed with the condition that the petitioner shall pay 1.5 times assessment tariff applicable on 4.5.2005 to the respondents and if the amount has already been paid by the petitioner, he shall not be required to pay it again.

Office is directed to issue a certified copy of this order to the learned counsel for the parties on payment of usual charges within 24 hours."

Sri R.K.Mishra, learned counsel for the respondents could not dispute that the Electricity Act, 2003 at the relevant point of time i.e. 01.11.2004 which is the date of surprise inspection and checking, the tariff provided under Section 126(6) of the Electricity Act, 2003 was 1.5 times of the normal tariff and not 3 times. Learned counsel for the respondents also could not dispute the statutory provisions which have already been considered by the Division Bench of this Court in ***Vijay Pal Singh (Supra)***.

Therefore, considering the facts of the case and the law laid down, we quash the order dated 29.3.2008 issued by the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Mathura.

The writ petition is allowed.

There shall be no order as to costs.

Order Date :- 13.12.2018

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